

21STCV05817 21STCV05817

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-02

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Case Number: 21STCV05817 Hearing Date: July 2, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:05 PM on July 1, 2026.

Notice

of intent to appear is REQUIRED pursuant to California Rule of Court

3.1308(a)(1). The Court does not desire

oral argument on the motion addressed herein.

As

required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL

OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on July 1, 2026.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Per

Rule of Court 3.1308, the Court may not entertain oral argument if notice of

intention to appear is not given.

Plaintiffs allege that Defendants failed to replace a known

defective ceiling fan in the bathroom of a neighboring unit. The fan caught

fire, which caused smoke damage to Plaintiffs' unit and belongings.

Defendants

Gidi Cohen Enterprises dba GC Enterprises, Gidi Cohen, and CG Investments, LLC

dba CGI Strategies In Real Estate move for summary adjudication.

TENTATIVE RULING

Defendants

Gidi Cohen Enterprises dba GC Enterprises, Gidi Cohen, and CG Investments, LLC

dba CGI Strategies In Real Estate's motion for summary adjudication is placed OFF-CALENDAR. The motion was set to be heard only 11 days prior to the trial date without a prior Court finding of good cause to hear this motion sooner than 30 days prior to the trial date. (Code Civ. Proc. § 437c(a)(3).) As such, the notice of the hearing is invalid. (Robinson v. Woods (2008)

168 Cal.App.4th 1258, 1267-68.) It is reversible error for the Court to grant a motion for summary adjudication for which the notice of hearing did not comply with the strict time requirements of section 437c. (Id.)